

THE STATE OF TEXAS
VS.

ANDREA GUADALUPE BERBEL
9723 CULEBRA
HOUSTON, TX 77013

SPN:
DOB: **WF 9/7/82**
DATE PREPARED: **11/9/2010**

02527140

D.A. LOG NUMBER: **1694233**
CJIS TRACKING NO.:

BY: SC DA NO: **065427500**
AGENCY: **HPD**
O/R NO: **026753310X**
ARREST DATE: **TO BE**

NCIC CODE: **1199 01**

RELATED CASES: **SAME DEF. - 2 FELONIES**

FELONY CHARGE: **IMPROPER RELATIONSHIP WITH STUDENT**

CAUSE NO:

HARRIS COUNTY DISTRICT COURT NO:

FIRST SETTING DATE:

1284703

263

BAIL: **\$30,000**

PRIOR CAUSE NO:

FILED
Loren Jackson
District Clerk

NOV 09 2010
Time: **11:55 AM**
Harris County, Texas

By **NLO**
Deputy

IN THE NAME AND BY AUTHORITY OF THE STATE OF TEXAS:

Before me, the undersigned Assistant District Attorney of Harris County, Texas, this day appeared the undersigned affiant, who under oath says that he has good reason to believe and does believe that in Harris County, Texas, **ANDREA GUADALUPE BERBEL** hereafter styled the Defendant, heretofore on or about **DECEMBER 28, 2009**, did then and there unlawfully while an employee of a PUBLIC SECONDARY school, intentionally and knowingly engage in SEXUAL INTERCOURSE with **ROBERTO CARLOS CARBAJAL**, hereinafter called the Complainant, a student who was enrolled at the school at which the Defendant worked and who was not the Defendant's spouse, by **PLACING THE COMPLAINANT'S MALE SEXUAL ORGAN IN THE FEMALE SEXUAL ORGAN OF THE DEFENDANT.**

PROBABLE CAUSE

Affiant, J.M. Perales, a peace officer with the Houston Police Department, assigned to the Juvenile Sex Crimes Unit, has reason to believe and does believe that Andrea Berbel, twenty-seven years of age at time of offense, hereafter referred to as the defendant, a teaching assistant employed at Lee High School, committed the felony offenses of Improper Relationship between Educator and Student on or about December 28, 2009 at 6710 Mullins, Apartment 39, Houston, Harris County, Texas; Sexual Assault of a Child on or about December 28, 2009, at 6710 Mullins, Apartment 39, Houston, Harris County, Texas; and Sexual Assault of a Child on or about January 16, 2010, at 6710 Mullins, Apartment 39, Houston, Harris County, Texas.

Affiant was assigned this case for investigation, wherein the defendant is named as the perpetrator of sexual assault of a child, Roberto Carlos Carbajal, hereafter referred to as the complainant, a sixteen year old male at the time of the offense and not the spouse of the defendant, whom he knows by name and by sight, as Andrea Berbel, a teaching assistant at Lee High School. Affiant obtained H.I.S.D. employment records for defendant which stated defendant was an employee of H.I.S.D. specifically Lee High School, a secondary school, since September 2009 and H.I.S.D. student record for complainant which confirmed he was an enrolled student at Lee High School. Affiant conducted a digitally video recorded interview of complainant and Affiant found the complainant to be reliable, credible and able to distinguish between telling the truth and telling a lie.

Complainant stated he is enrolled as a student at Lee High School and the defendant, a teaching assistant employed at Lee High School, befriended him in November 2009 during his 6th period while she was tutoring him. Complainant stated he became flirtatious with defendant and they would talk about sex. Complainant stated they began having sexual relations during Christmas Break of December 2009. Complainant stated on or about December 28, 2009 he asked defendant to come over to his friend's apartment located at 6710 Mullins, Apartment 39, Houston, Harris County, Texas. Complainant stated he took defendant's clothes off including her bra and panties while they were on the living room couch. Complainant stated he removed his clothing and placed his penis (male sexual organ) with a condom inside of defendant's vagina (female sexual organ) until he ejaculated. Complainant they did it twice on that occasion.

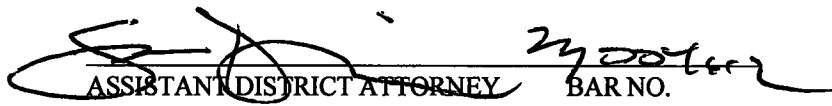
Complainant stated the last time they had sex was on or about January 16, 2010 at 6710 Mullins, Apartment 39, Houston, Harris County, Texas. Complainant stated he placed his penis (male sexual organ) with a condom inside of defendant's vagina (female sexual organ) until he ejaculated.

Complainant further stated defendant would kiss him in the school stairways located at Lee High School located at 6529 Beverly Hill St, Houston, Texas. Affiant located two witnesses who observed the Complainant and Defendant embracing and kissing each other at school. Affiant conducted digitally audio recorded interviews of student witnesses Stephany Cisneros, DOB 8-3-93, 16 yoa and Veronica Alcona, DOB 10-8-93, 16 yoa. Cisneros and Alcona stated they were present at Lee High School when they both were walking to lunch and observed fellow student Complainant and teacher Defendant kissing each other on the lips by the school patio window. The witnesses reported the kissing incident a week later to school personnel.

AGAINST THE PEACE AND DIGNITY OF THE STATE.

Sworn to and subscribed before me on November 9, 2010


AFFIANT


ASSISTANT DISTRICT ATTORNEY
OF HARRIS COUNTY, TEXAS. BAR NO. 2400462

COMPLAINT

RECORDER'S MEMORANDUM
This instrument is of poor quality
at the time of imaging

COPY OF COMPLAINT/WARRANT DELIVERED TO

Officer's name: *[Signature]*

Police agency: *Harris*

Phone no: *[Crossed out]*

date/time: *NOV 09 2010*

12:15 PM

Unofficial Copy Office of Marilyn Burgess District Clerk